

want of answer to be executed against such defendant by reason of his being out of the jurisdiction of the Court, or being concealed, or for any other cause, then such defendant is, for the purpose of enabling the plaintiff to obtain an Order to take the bill *pro confesso*, to be deemed to have absconded to avoid, or to have refused to obey, the process of the Court.

1845.
English Order.
77.

In cases where any defendant, who under Order 77 (*supra*) may be deemed to have absconded to avoid, or to have refused to obey, the process of the Court, has appeared in person or by his own solicitor, the plaintiff may serve upon such defendant or his solicitor a notice that on a day in such notice named (being not less than fourteen days after the service of such notice) the Court will be moved that the bill may be taken *pro confesso* against such defendant; and the plaintiff is, upon the hearing of such motion, to satisfy the Court that such defendant ought under the provisions of Order 77 to be deemed to have absconded to avoid, or to have refused to obey, the process of the Court; and the Court being so satisfied, and the answer not being filed, may, if it so thinks fit, order the bill to be taken *pro confesso* against such defendant, either immediately or at such time or upon such further notice as, under the circumstances of the case, the Court may think proper.

78.

In cases where any defendant, who under Order 77 (*supra*) may be deemed to have absconded to avoid, or to have refused to obey, the process of the Court, has had an appearance entered for him under Orders 29, 31, or 33, and has not afterwards appeared in person or by his own solicitor, the plaintiff may cause to be inserted in the *London Gazette* a notice, that on a day in such notice named (being not less than four weeks after the first insertion of such notice in the *London Gazette*), the Court will be moved that the bill may be taken *pro confesso* against such defendant; and the plaintiff is, upon the hearing of such motion, to satisfy the Court that such defendant ought, under the provisions of Order 77 (*supra*) to be

79.